

SENATE No. 2723

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 17, 2025.

The committee on Senate Ways and Means to whom was referred the House Bill authorizing the town of Westford to release agricultural preservation restrictions over land owned by Westford Gateway, LLC (House, No. 4362); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 2723.

For the committee,
Michael J. Rodrigues

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SECTION 1. (a) Notwithstanding any general or special law to the contrary, the town of Westford may execute a certificate of release over so much of the agricultural preservation restrictions granted to the town of Westford by Keith A. Bohne and Nanci Bohne as lies within the limits of lands to be acquired by the Massachusetts Department of Transportation in connection with the rehabilitation of Boston road in the town of Westford. Said agricultural preservation restrictions are described in: (i) book 8569, page 242 dated May 15, 1997 recorded in the Middlesex north registry of deeds; (ii) book 9155, page 153 dated March 26, 1998 recorded in the Middlesex north registry of deeds; and (iii) book 10124, page 169 dated May 3, 1999 recorded in the Middlesex north registry of deeds. Said agricultural preservation restrictions are shown on a plan of land entitled “Compiled Plan of Land 66 Boston Road Westford, Massachusetts”, dated May 6, 1997 and recorded in plan book 194, page 7 in the Middlesex north registry of deeds. The release of such agricultural preservation restrictions shall be subject to and completed in accordance with this act.

(b) The lands over which the certificate of release shall apply are located along the northeasterly side of Boston road in the town of Westford and shown as parcels 20-E-1, 20-GR-PUE-2 and 20-PUE-14 on a preliminary right of way plan dated March 29, 2024 and recorded in plan book 252, plan 30 in the Middlesex north registry of deeds, except as otherwise noted, to be

18 filed with the chief engineer of the highway division of the Massachusetts Department of
19 Transportation and recorded with the Middlesex north registry of deeds.

20 (c) All parcels to be used for this construction project shall be restored to their condition
21 prior to the construction project to protect the conservation values of the surrounding lands.

22 SECTION 2. As mitigation for the release described in section 1, the Massachusetts
23 Department of Transportation shall provide funding in lieu of replacement land to the town of
24 Westford, which shall be not less than 110 per cent of the fair market value or value in use of the
25 impacted lands, whichever is greater, as determined by an independent appraisal. The town of
26 Westford shall deposit such sum into its Community Preservation Fund and dedicate it solely for
27 the acquisition of land for conservation or agricultural preservation purposes. The town of
28 Westford shall use such funds not less than 3 years after the passage of this act to acquire
29 replacement land that is in a comparable location of equal or greater natural resource value as
30 determined by the secretary of energy and environmental affairs and of equal or greater acreage
31 and monetary value as determined by an independent appraisal of the fair market value or value
32 in use, whichever is greater, of the impacted lands.

33 SECTION 3. The Massachusetts Department of Transportation shall assume all costs
34 associated with engineering, surveys, appraisal, deed preparation and other expenses necessary to
35 execute the release authorized in section 1.

36 SECTION 4. Except as partially released in accordance with this act, the agricultural
37 preservation restrictions identified in section 1 shall remain in full force and effect.

38 SECTION 5. This act shall take effect upon its passage.